

24STCV27602 24STCV27602

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-09-18

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Case Number: 24STCV27602 Hearing Date: September 18, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

MASON

& ASSOCIATES INSURANCE SERVICES, LLC,

Plaintiff,

vs.

GENERAL

MOTORS, LLC,

Defendant.

Case

No.:

24STCV27602

Hearing

Date:

September 18, 2026

ORDER

GRANTING MOTION FOR ATTORNEY FEES

I. BACKGROUND

Plaintiff Mason &

Associates Insurance Services, LLC ("Mason") entered into a warranty contract with Defendant General Motors, LLC ("GM") regarding a 2023 Cadillac Escalade ESV ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities making the car effectively worthless. GM allegedly failed to reasonably repair or reimburse Mason for the vehicle. Mason sued GM for four causes of action, including breach of the implied warranty.

On April 3, 2026, Mason filed a conditional notice of settlement of the entire case.

On April 6, 2026, Mason filed the instant motion for attorney fees. GM filed an opposition. Mason filed a reply brief.

II. LEGAL STANDARD

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code of Civil Procedure § 1033.5, subd. (a)(10)(B).[1])

Civil Code section 1717 states that "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. (Civ. Code § 1717, subd. (a).) The term "on a contract" is liberally construed to include any action that "involves" a contract. (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 894.) "To determine whether an action is on the contract, we look to the complaint and focus on the basis of the cause of action." (Brown Bark III, L.P. v. Haver (2013) 219 Cal.App.4th 809, 821.) "[F]ees are properly awarded under section 1717 'to the extent

that the action in fact is an action to enforce—or avoid enforcement of—the specific contract.” (Turner v. Schultz (2009) 175 Cal.App.4th 974, 980.) The prevailing party on the contract is “the party who recovered greater relief in the action on the contract.” (Civ. Code, § 1717, subd. (b)(1).)

The attorney bears the burden of proof as to “reasonableness” of any fee claim. (§ 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.” (Ibid.)

A party's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford v. Bd. of Trustees of California State Univ. (2005) 132 Cal. App. 4th 359, 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

IV. DISCUSSION

Mason moves for an award of attorney fees and costs in the amount of \$66,325.78, of which \$3,915.28 is attributed to costs and \$62,410.50 is attributed to attorneys' fees.

This motion was filed within the timeframe required by California Rules of Court rule 3.1702, subdivision (b)(1).

A. Entitlement to Attorney Fees

Mason seeks an award of attorney's fees pursuant to the section 998 compromise offered by GM. (Mot., Barry Decl. ¶ 9, Ex. 1.) On November 7, 2025, Mason's counsel, on behalf of Mason, accepted the section 998 compromise with the following provision: "Plaintiffs' attorney's fees, expenses, and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) may be determined by the Court via noticed motion. For purposes of any such motion, GM will agree that Plaintiffs are the prevailing party." (Ibid.)

As the settlement agreement explicitly provides Mason is the prevailing party, for purposes of determining attorney's fees, and is entitled to said fees, Mason is entitled to attorney fees under Civil Code section 1717, subdivision (a).

B. Reasonableness of Fees

1. Reasonable Hourly Rate

In assessing the reasonableness of hourly billing rates, "the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437; see Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th

266, 272 [“a reasonable hourly rate is the product of a multiplicity of factors . . . [including] the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney’s reputation, and the undesirability of the case”].) “The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “The experienced trial judge is the best judge of the value of professional services rendered in [her] court.” (Ibid.)

Mason seeks to recover attorneys’ fees for 20.9 hours at a rate of \$695.00 per hour for the work of David N. Barry (“Barry”). (Id. at ¶ 13.) Barry argues his rate is reasonable, as he has 24 years of legal experience, 21 of which has been for warranty related cases. (Id. at ¶ 21.) Barry also stated his firm’s rates have been routinely upheld in other cases but did not attach any evidence or request the Court take judicial notice of the subject cases for the Court to verify the rates; therefore, the Court will not consider these. However, based upon Barry’s experience, this rate appears facially reasonable to the Court.

Mason also seeks to recover attorneys’ fees for 66.9 hours at a rate of \$675.00 per hour for the work of Elizabeth Quinn (“Quinn”). The Court notes Quinn is noted as billing at \$675.00 per hour in the moving papers, and \$600.00 per hour in Barry’s declaration. (Id. at ¶ 13.) Based on the attached exhibit 2, it appears Quinn routinely bills at \$675.00 per hour, and the \$600.00 per hour is a mistake. (Mot., Quinn Decl. ¶ 3, Ex. 2.) Quinn’s rate is based upon 23 years of trial practice, and approximately 8 years of that relating to warranty work. (Id. at ¶¶ 8, 12.) The Court finds this rate also facially reasonable, based upon Quinn’s experience.

Mason also requests attorneys’ fees for 4.7 hours at a rate of \$525.00 per hour for the work of Debora Rabieian, 0.6 hours at a rate of \$375.00 per hour for the work of C. Richard Lara, and 0.1 hours at a rate of \$350.00 per hour for Christopher Derhartounian. Rabieian has worked as an attorney for 6 years. (Mot., Rabieian Decl. ¶¶ 4-5.) Lara has worked as an attorney for three years. (Mot., Lara Decl. ¶ 6.) The Court finds both rates facially reasonable. However, no evidence was provided as to Derhartounian’s experience; the Court cannot assess if the assigned rate was fair. Therefore, the Court strikes the \$35.00 attributable to Derhartounian.

GM does not argue the billed rates are too high. Therefore, the Court will not reduce counsel's requested rates.

2. Reasonable Hours Incurred

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

A prevailing party's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (Lunada Biomedical v. Nunez (2014) 240 Cal.App.4th 459, 488.)

Mason seeks to recover attorney fees for a collective 93.2 hours litigating this matter. Counsel did not submit verified billing invoices in support of the expended time, instead presenting an exhibit with time allocations for each task. (Mot., Barry Decl. ¶ 14, Ex. 2.) Therefore, Mason has not presented prima facie evidence that the services listed were necessarily incurred. The Court evaluates all listed expenses, and finds the following expenses should be subject to reduction:

Date

Billing

Attorney

Description

Hrs/Rate

Reduction Amount

Reason

10/22/24

DB

Draft

CLRA letter to: GM

0.1

\$695/hr

\$69.50

Solely

related to fraud claim, inapplicable for recovery

11/11/24

EQ

Review:

email correspondence from GM re Plaintiff's CLRA demand

0.1,

\$675/hr

\$67.50

Solely

related to fraud claim, inapplicable for recovery

1/3/25

EQ

Review

GM's Demurrer and Motion to Strike

1.5,

\$675/hr

\$1,012.50

Solely

related to fraud claim, inapplicable for recovery

1/17/25,

1/20/25, and 1/21/25

EQ

Draft

Written Discovery and Notice of PMK Deposition

2.2,

\$675/hr

\$1,485.00

Excessive

time given experience and complexity

2/5/25-2/7/25

EQ

Review

and Draft Discovery Requests

1.9,

\$675/hr

\$1,282.50

Excessive
time given experience and complexity

2/19/25

EQ

Review
Discovery Responses

0.8,
\$675/hr

\$540.00

Excessive
time given experience and complexity

3/7/25
and 3/10/25

EQ

Draft
Motion to Compel GM's Person Most Knowledgeable

0.5,
\$675/hr

\$337.50

Excessive
time given experience and complexity

4/15/25

EQ

Draft

Opposition to GM's Demurrer and Motion to Strike

2.6,
\$675/hr

\$1,807.00

Solely
related to fraud claim, inapplicable for recovery

4/17/25

EQ

Review
Reply to GM's Demurrer and Motion to Strike

0.5,
\$675/hr

\$337.50

Solely
related to fraud claim, inapplicable for recovery

4/25/25
and 4/28/25

EQ

Prepare
and Appear for GM's Demurrer and Motion to Strike

2.5,
\$675/hr

\$2,362.50

Solely
related to fraud claim, inapplicable for recovery

5/21/25

EQ

Prepare

Motion to Compel for Further Responses to Special Interrogatories

0.4,

\$675/hr

\$270.00

Excessive

time given experience and complexity

5/21/25

EQ

Prepare

Motion to Compel for Further Responses Requests for Production

0.7,

\$675/hr

\$472.50

Excessive

time given experience and complexity

9/9/25

and 10/1/25

DR

Travel

Time

1.6,

\$375/hr

\$600.00

Excessive

time given location between office and Court, as well as associated fee.

10/6/25

EQ

Draft/Revise

Motion for Sanctions

2.0,

\$675/hr

\$1,350.00

Taken

off calendar prior to hearing

TBD

DB

Draft

Opposition and Review GM's motion to Tax Costs

5.5,

\$695/hr

\$3,822.50

Motion

to Tax Costs Never Filed

Multiple

Dates

DB

Communication
with client Re; Case Status

2.0,
\$695/hr

\$1390.00

Excessive
time given experience and complexity

The remaining tasks are
facially reasonable based upon the papers submitted in this action. Therefore,
the Court strikes \$17,241.50 in attorney fees from the requested base fees of \$62,410.50,
making the new base total \$45,169.00.

C. Costs

Allowable costs "shall be reasonably
necessary to the conduct of the litigation rather than merely convenient or
beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) Any
items not specifically mentioned by statute "may be allowed or denied in the
court's discretion." (Id., subd. (c)(4).) The Beverly-Song Act allows a successful
plaintiff to recover both "costs" and "expenses." (See Civ. Code, § 1794, subd.
(d).)

"If the items appear to be proper charges
the verified memorandum is prima facie evidence that the costs, expenses and
services therein listed were necessarily incurred by the defendant [citations],
and the burden of showing that an item is not properly chargeable or is
unreasonable is upon the [objecting party].' [Citation.]" (Nelson v.
Anderson (1999) 72 Cal.App.4th 111, 131.)

Mason requests a total of \$3,915.28 in costs
and expenses, pursuant to the memorandum of costs. (See 4/6/26 'Memorandum of
Costs'.) GM argues certain portions of Mason's costs are unrecoverable;
however, as noted in GM's opposition, GM did not file any motion to tax costs.
Therefore, the Court will not consider GM's opposition on the issue of costs

specifically. The Court instead evaluates the costs on its own merits.

The costs appear to be facially reasonably and allowable under section 1033.5. Therefore, the Court grants the request for costs in full.

V. CONCLUSION

Plaintiff Mason & Associates Insurance Services, LLC's motion for attorney fees is GRANTED, in part. The Court awards attorney fees of \$45,169.00 and costs of \$3,915.28.

Mason is ordered to give notice.

DATED:

September 18, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.